

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Rodney M. Elliott

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the cost of electricity at large and qualified data centers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>12/5/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>1/8/2026</i>

HOUSE No.

By Representative Elliott of Lowell, a petition (subject to Joint Rule 12) of Rodney M. Elliott relative to the cost of electricity at large and qualified data centers. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the cost of electricity at large and qualified data centers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 164 of the General Laws is hereby amended by adding the following section:-

2 Section 152. (a) As used in this section, the terms “large data center” or “qualified data
3 center”, shall mean a facility in the commonwealth that is: (i) able to use 10 megawatts or more;
4 and (ii) comprised of 1 or more buildings located on a single parcel or on contiguous parcels of
5 land used primarily to house computer information technology equipment, networking, data
6 processing or data storage, including servers and routers for the storage, management and
7 dissemination of data and information.

8 (b) A distribution company shall not reduce the availability of electricity to or increase
9 the rate charged to said company's residential or income-eligible customers due to the
10 construction of, operation of, or use of electricity, as determined by the department, by qualified
11 data centers and large data centers. The department shall review the rates and terms of a
12 distribution company for the sale of electricity to qualified data centers and large data centers for

13 the purposes of preventing an increase in electricity cost being passed on to the company's
14 residential customers. The distribution company shall: (i) provide any records regarding cost
15 attribution to or agreements with qualified data centers and large data centers regarding build-out
16 or interconnection to the department for review; and (ii) maintain records of electricity sales
17 related to qualified data centers and large data centers to the department for review.

18 (c) The department may promulgate rules and regulations necessary to carry out this
19 section.